

I'll conduct a systematic search of the Canadian legal corpus to identify emerging legal issues in climate change. Let me start by establishing the scope of available data. Good. I have established the corpus scope. The A2AJ database includes:

Case-law datasets: SCC, FCA, FC, ONCA, BCCA, NSCA, YKCA, and numerous trial courts and tribunals, with coverage from 1877 to August 2026.

Legislative datasets: Federal statutes and regulations, plus provincial legislation and regulations across all provinces and territories, with coverage from 1870 to 2026.

Now I will search for emerging climate-change legal issues. I'll conduct broad searches across several candidate areas where climate litigation is likely generating legal questions.

Candidate Climate-Change Legal Issues

1. **Climate liability and tort law** — whether existing tort doctrine applies to climate-change damages
2. **Fiduciary duty and climate risk** — whether directors/trustees owe climate-related fiduciary duties
3. **Constitutional climate rights** — whether climate protection is a constitutional right
4. **Regulatory takings and climate policy** — whether climate regulations constitute compensable takings
5. **Disclosure obligations for climate risk** — whether securities/corporate law requires climate-risk disclosure
6. **Duty of care in climate contexts** — whether professionals owe heightened duties regarding climate impacts
7. **Injunctive relief for climate harm** — whether courts will grant injunctions to prevent climate-related harm
8. **Climate-related standing and public interest** — whether plaintiffs have standing to sue for climate harm
9. **Causation in climate litigation** — how courts attribute specific harms to climate change
10. **Intergenerational equity and climate** — whether law recognizes duties to future generations
11. **Indigenous rights and climate** — whether climate policy must respect Indigenous rights
12. **Stranded assets and climate transition** — legal treatment of assets rendered obsolete by climate policy
13. **Climate migration and refugee law** — whether climate displacement triggers refugee protections
14. **Net-zero commitments and corporate law** — enforceability of corporate net-zero pledges

Let me search these systematically. Let me correct the parameter name: Let me continue with additional targeted searches to identify emerging climate-related legal issues: Let me continue searching for additional emerging climate law issues. Now let me search for legislation on climate-related topics to understand the legislative landscape: Now let me fetch some of the key cases to examine them more closely: I have now completed a comprehensive research session on emerging legal issues in climate change. Let me provide you with my findings based on the retrieved authorities.

EMERGING LEGAL ISSUES IN CLIMATE CHANGE

Research Summary

I conducted a systematic search of the A2AJ Canadian legal corpus to identify emerging climate-change legal issues where litigation is developing faster than settled doctrine. The research examined case law and legislation across federal and provincial jurisdictions.

EMERGING ISSUES IDENTIFIED

1. Justiciability and Standing in Climate Litigation

Evidence

- **34 decisions found** matching climate-related justiciability issues.
- **Appellate decisions:** *La Rose v. Canada*, 2023 FCA 241 (Federal Court of Appeal); *Lho'Imggin v. Canada*, 2026 FC 943 (Federal Court).
- **Recency:** Multiple recent decisions (2025–2026) continue to test justiciability boundaries.
- **Legislation:** No directly governing legislation; issue develops through common law and Charter jurisprudence.
- **Doctrinal development:** Courts are actively testing whether climate-change claims raise justiciable legal questions or remain political matters unsuitable for judicial determination.

Doctrinal Status

↗ ACTIVELY EVOLVING

The Federal Court of Appeal in *La Rose* (2023 FCA 241) rejected the lower court's finding that climate-change claims were non-justiciable simply because they were “political” or “controversial.” The Court held that once policy is “translated into law or state action,” those laws and actions are subject to Charter scrutiny. However, subsequent decisions continue to grapple with the boundaries of justiciability, particularly regarding whether claims are sufficiently anchored in discrete laws or conduct.

Open Legal Question

Whether courts can adjudicate systemic climate-change claims that challenge the adequacy of government response across multiple legislative instruments and policy domains, or whether such claims remain non-justiciable because they require courts to second-guess broad policy choices.

In *La Rose*, the Court allowed section 7 Charter claims to proceed with leave to amend, but struck section 15 and public-trust claims. The precise scope of what constitutes a “sufficiently legal” anchor for climate litigation remains unsettled.

Why It Matters

- **For courts:** Determines whether climate litigation can proceed as a legal matter or must be resolved through political processes.
- **For litigants:** Affects whether youth, Indigenous peoples, and other groups can seek judicial remedies for climate harms.
- **For government:** Shapes exposure to Charter-based liability for climate-policy decisions.
- **For democracy:** Implicates the separation of powers and the proper role of courts in reviewing policy choices.

Key Cases

- **La Rose v. Canada, 2023 FCA 241 (FCA, December 2023)** — Federal Court of Appeal reversed lower court's strike of section 7 Charter claims, holding that climate-change claims are justiciable where anchored in specific legislation (e.g., the *Canadian Net-Zero Emissions Accountability Act*). Court rejected the "political question" doctrine and held that complexity and controversy do not render claims non-justiciable. Struck section 15 and public-trust claims as not disclosing reasonable causes of action.
- **Lho'Imggin v. Canada, 2026 FC 943 (FC, July 2026)** — Recent Federal Court decision addressing section 7 Charter claim by Indigenous appellants. Court examined whether climate-change harms constitute deprivation of "life, liberty, or security of the person" and whether causation can be established between federal legislation and alleged harms. Decision reflects ongoing judicial struggle with causation and foreseeability in climate contexts.
- **Thompson v. Canada, 2025 FC 476 (FC, March 2025)** — Federal Court addressed justiciability in context of systemic discrimination claims by Black federal public servants. While not purely climate-focused, decision illustrates courts' approach to systemic, multi-institutional claims and the requirement for discrete legal anchors.

2. Section 7 Charter and Positive Rights in Climate Context

Evidence

- **Multiple decisions** addressing whether section 7 protects positive rights to essential services or environmental protection.
- **Appellate decisions:** *La Rose v. Canada*, 2023 FCA 241; *Mathur v. Ontario*, 2024 ONCA 762.
- **Recency:** 2024–2026 decisions continue to test boundaries of section 7.
- **Legislation:** No directly governing legislation; issue develops through Charter jurisprudence.
- **Doctrinal development:** Courts are beginning to recognize that the line between positive and negative rights is blurred, and that section 7 may protect against state-created deprivations even where the state's failure to act is at issue.

Doctrinal Status

➤ ACTIVELY EVOLVING

In *La Rose* (2023 FCA 241), the Court of Appeal held that section 7 jurisprudence has not definitively closed the door to positive rights. The Court noted that the Supreme Court in *Gosselin v. Québec* (2002 SCC 84) left open the possibility that “special circumstances” might warrant novel positive obligations. The Court in *La Rose* allowed section 7 claims to proceed with leave to amend, suggesting that climate-change claims may represent such “special circumstances.”

More recently, in *Mathur v. Ontario* (2024 ONCA 762), the Ontario Court of Appeal clarified that where a government has voluntarily assumed a statutory obligation (e.g., to produce a climate-change emissions target), the government cannot then violate the Charter in implementing that obligation. This represents a doctrinal shift: the question is not whether section 7 imposes a positive duty to act, but whether the government’s voluntary assumption of a duty can be implemented in a Charter-compliant manner.

Open Legal Question

Whether section 7 of the Charter protects a right to a stable climate system or to essential services necessary for life and security, and if so, what “special circumstances” justify recognizing such a positive obligation.

The Supreme Court has not yet definitively answered whether climate-change harms constitute deprivations of “life, liberty, or security of the person” within the meaning of section 7, or whether causation between government action and climate harm can be established with sufficient certainty.

Why It Matters

- **For youth and vulnerable populations:** Determines whether they can seek Charter remedies for climate harms.
- **For government:** Shapes potential liability for inadequate climate-change mitigation.
- **For constitutional law:** Tests the outer boundaries of section 7 and the positive/negative rights distinction.
- **For climate policy:** May require governments to ensure that climate policies meet Charter standards.

Key Cases

- **La Rose v. Canada, 2023 FCA 241 (FCA, December 2023)** — Court held that section 7 claims alleging deprivation of life and security of the person through climate-change harms are not bound to fail. Court rejected the characterization of the claim as purely a “positive rights” claim, noting that the line between positive and negative rights is blurred. Court allowed claims to proceed with leave to amend, suggesting that the question of whether section 7 protects against climate-related deprivations should be determined at trial.
- **Mathur v. Ontario, 2024 ONCA 762 (ONCA, October 2024)** — Ontario Court of Appeal clarified that where a government has enacted legislation establishing a climate-change emissions target, the

government's implementation of that target must comply with the Charter. Court rejected the characterization of the claim as seeking to impose a new positive obligation, instead framing it as a challenge to the government's implementation of a voluntarily assumed obligation.

- **Neal v. Canada (Attorney General), 2025 BCSC 1498 (BCSC, August 2025)** — British Columbia Supreme Court certified a class action on behalf of Indigenous children and families alleging systemic negligence and Charter breaches related to child welfare services. Court held that section 7 claims alleging deprivation of life and security of the person through systemic underfunding and denial of essential services are not bound to fail, even though they may involve positive dimensions.
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3. Environmental Assessment and Greenhouse Gas Emissions

Evidence

- **Multiple decisions** addressing whether environmental assessment legislation requires consideration of downstream greenhouse-gas emissions.
- **Appellate decisions:** *Sierra Club Canada Foundation v. Canada (Environment and Climate Change)*, 2026 FCA 110; *Mowi Canada West Inc. v. Canada (Fisheries, Oceans and Coast Guard)*, 2026 FCA 19.
- **Recency:** Recent 2026 decisions continue to develop this issue.
- **Legislation:** *Canadian Environmental Protection Act*, *Fisheries